



CHAPTER xliii.

An Act to confer further powers upon the Rhymney Railway Company for the construction of works the acquisition of additional lands and for other purposes. A.D. 1911.
[29th June 1911.]

WHEREAS it is expedient that the Rhymney Railway Company (hereinafter called "the Company") be empowered to make and execute the widening and deviations of railways and other works by this Act authorised and hereinafter described and to acquire the lands described in this Act and to exercise the powers by this Act conferred upon them:

And whereas plans and sections showing the lines and levels of the said works and plans showing the lands by this Act authorised to be acquired and also a book of reference to the said plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Glamorgan which plans sections and book of reference are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas it is expedient that the powers of the Company for the compulsory purchase of the lands required for Railway No. 4 and Railway No. 5 authorised by the Rhymney Railway Act 1902 (hereinafter called "the Act of 1902") as extended by the Rhymney Railway Act 1905 (hereinafter called "the Act of 1905") and the Rhymney Railway Act 1908 (hereinafter called "the Act of 1908") be further extended and that the period allowed for the completion of those railways be further extended:

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And whereas it is expedient that the powers of the Company for the compulsory purchase of the lands required for the railway authorised by the Act of 1908 be extended and that the period allowed for the completion of that railway be also extended:

And whereas it is expedient that the time limited for the sale of certain lands acquired by the Company for the purposes of their undertaking be further extended:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Rhymney Railway Act 1911.

Incorporation of general Acts.

2. The following Acts and parts of Act are (except where expressly varied by this Act) incorporated with and form part of this Act:—

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845; and

Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

The expression “the railways” means the railways by this Act authorised to be made.

Power to make railways.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways hereinafter described with all proper stations sidings junctions signals bridges approaches and other works and conveniences connected therewith and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited book of reference as may be required for those

purposes The railways hereinbefore referred to and authorised by this Act are all situate in the county of Glamorgan and are— A.D. 1911.

Railway No. 1 A widening of the Company's Bute Docks Branch Railway for a distance of two furlongs three chains and thirty links situate wholly in the parish and city of Cardiff commencing at a point two hundred and three yards or thereabouts measured in a southerly direction from the north abutment of the bridge carrying the said railway over Tyndall Street and terminating at a point ten yards or thereabouts measured in a northerly direction from the north abutment of the viaduct carrying the said railway over the Great Western Railway: •

Railway No. 2 A deviation four furlongs and two chains in length of the down line of the Company's main line of railway in the parishes of Lisvane and Llanishen in the rural district of Llandaff and Dinas Powis commencing in the parish of Lisvane at a point one hundred and ten yards or thereabouts measured in a southerly direction from the centre of the bridge carrying the public road leading from Thornhill to Lisvane over the said main line near Cherry Orchard Farm and terminating in the parish of Lisvane at a point thirteen yards or thereabouts measured in a southerly direction from the south end of the Caerphilly Tunnel:

Railway No. 3 A deviation three furlongs four chains and twenty-five links in length of the Company's main line of railway situate wholly in the parish of Llanfabon in the urban district of Caerphilly commencing at the centre of the bridge carrying the said main line over the public road near Ystrad Mill and terminating at the centre of the bridge carrying the same over the public road near Troedyrhiew Farm.

5. Subject to the provisions of this Act the Company may in the lines and according to the levels shown upon the deposited plans and sections make the new road or diversion of the existing road hereinafter described with all necessary bridges arches inclined planes banks drains cuttings fences and other works in connection therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the

Power to make new road on lands to be acquired.

A.D. 1911. deposited book of reference relating thereto as may be required for those purposes (that is to say):—

A new road in the said parishes of Llanishen and Lisvane in the rural district of Llandaff and Dinas Powis commencing by a junction with the existing road leading from Thornhill to Lisvane at the north-western corner of the enclosure numbered 20 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1900 of the parish of Llanishen and terminating by a junction with the same road at the north-eastern corner of enclosure numbered 261 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1900 of the parish of Lisvane;

and may stop up so much of the said existing road as lies between the points of commencement and termination of the said new road.

Power to
make a foot-
path on lands
of Company.

6. Subject to the provisions of this Act the Company may upon lands now belonging to them, make in the parish of Lisvane in the rural district of Llandaff and Dinas Powis the new footpath or diversion of the existing footpath shown on the deposited plans commencing at a point in the existing footpath (alleged to be public) leading from Mill Road past Llwyn-crwn Farm to the said public road leading from Lisvane to Thornhill about fifty-seven yards east of Llwyn-crwn Farmhouse and terminating at the new road described in the last preceding section of this Act at a point twenty yards or thereabouts measured in a westerly direction from the north-eastern corner of the enclosure numbered 261 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1900 for the parish of Lisvane and may stop up the said existing footpath between the point of commencement of the new footpath and Cherry Orchard Farm and the portion of the existing footpath leading from Llwyn-crwn Farm in the parish of Lisvane across the Company's railway to Llanishen Mill Farm Cottages in the parish of Llanishen between Llwyn-crwn Farm aforesaid and the eastern fence of the enclosure numbered 318 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1900 for the parish of Llanishen.

Power to
Company to
purchase ad-
ditional
lands.

7. Subject to the provisions of this Act the Company may in addition to the other lands which they are by this Act authorised to acquire enter upon take and use and appropriate for the purpose of altering or extending their works or providing further or improved accommodation for the traffic on their

railway or for any other purposes connected with their undertaking all or any of the lands in the county of Glamorgan hereinafter described or referred to and delineated on the deposited plans and described in the deposited book of reference and may exercise the powers and execute the works hereinafter mentioned and so far as the said works are shown on the deposited plans and sections the Company may make the same in the lines and in accordance with the levels shown on the said plans and sections (that is to say) :—

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In the parish and city of Cardiff—

- (A) Certain lands buildings and hereditaments known as Nos. 14 and 15 The Parade and No. 2 The Walk with the appurtenances thereto and the south-western end of the public road called The Walk which abuts on the premises Nos. 1 and 3 and 2 and 4 The Walk aforesaid and the Company may in connection therewith stop up the said south-western end of the said public road and thereupon all rights of way thereover shall be extinguished:

In the parish of Llanishen in the rural district of Llandaff and Dinas Powis—

- (B) Certain lands on the east side of and adjoining the Company's railway extending from the north side of the public road over the said railway leading to the Jews' Cemeteries to the north side of the enclosure numbered 480 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1901 of the said parish being parts of the enclosures numbered 601 600 504 481 and 480 on the said map:
- (C) Certain lands on the west side of and adjoining the Company's railway extending from the northern side of Heath Bridge carrying the same over the road leading from Cardiff to Llanishen to the southern side of the public road crossing beneath the Company's Heath Viaduct and leading from Whitchurch to Llanishen being parts of the enclosures numbered 479 and 466 on the last-mentioned map:
- (D) Certain lands on the west side of and adjoining the Company's railway and extending from the northern side of the last-mentioned road at Heath Viaduct

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to a point two hundred and fifty-three yards or thereabouts measured in a northerly direction from the south-east corner of enclosure numbered 407 on the last-mentioned map being parts of the enclosures numbered 467 416 405 and 407 thereon and the Company may in connection therewith divert along the west side of such lands for a distance of two hundred and sixty-six yards or thereabouts from the northern side of the said last-mentioned road the portion of the existing footpath leading therefrom to the village of Llanishen which now runs along the west side of the said railway :

- (E) Certain lands on the west side of and adjoining the Company's railway extending from a point twenty-five yards or thereabouts measured in a northerly direction from the northern fence of the station-master's garden at Llanishen Station to a point three hundred and fifty yards or thereabouts north of the southern boundary of enclosure numbered 335 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1900 of the said parish being parts of the enclosures numbered 347 and 335 on the said map and of the enclosure not numbered thereon lying between the premises adjoining the said garden and enclosure numbered 347 and certain lands on the east side of and adjoining the Company's said railway extending from the southern boundary of the enclosure numbered 334 on the last-mentioned map to the north-west corner of the enclosure numbered 326 on the same map being parts of the enclosures numbered 334 327 and 326 on the said map and the Company may in connection therewith make a diversion of the existing footpath which leads from Mill Road over the Company's railway past Mill Farm commencing on the east side of the railway at or near Martle-wy House and terminating at a point in the footpath between Mill Farm and Mill Farm cottages on the west side of the said railway twenty-three yards or thereabouts measured in a northerly direction from the south-west corner of the said enclosure num-

bered 335 and may remove the bridge carrying the said existing footpath and occupation road over the said railway to a position two hundred and forty-five yards or thereabouts northwards of its present position and may stop up and discontinue so much of the existing footpath as lies between the point of commencement of the intended new or diverted footpath and a point on the said existing footpath twenty-three yards or thereabouts measured in a north-easterly direction from the south-west corner of the said enclosure numbered 335: A.D. 1911.

- (F) Certain lands on the west side of and adjoining the Company's railway extending from the northern side of Cherry Orchard Bridge and terminating at the north-eastern corner of the enclosure numbered 14 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1900 of the said parish of Llanishen and being the whole or parts of the enclosures numbered 13 and 14 on the said map:

In the parishes of Llanishen and Lisvane in the rural district of Llandaff and Dinas Powis—

- (G) Certain lands on the west side of and adjoining the Company's railway extending from the north-east corner of the enclosure in the parish of Llanishen numbered 324 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1900 of the said parishes of Llanishen and Lisvane where Nant-fawr crosses under the railway to the south side of Cherry Orchard Bridge being the whole or parts of the enclosures in the parish of Llanishen numbered 324 325 322 323 22 23 19 and 20 and the enclosure in the parish of Lisvane numbered 264 on the said map:

In the parish of Eglwysilan in the urban district of Caerphilly—

- (H) Certain lands formerly the side of the Pwll-y-pant Quarry huts situate on the west side of and adjoining the Company's railway extending from a point fourteen yards or thereabouts measured in a northerly direction from Pwll-y-pant Quarry Church to a point one hundred and twenty-three

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yards or thereabouts measured in a northerly direction from the said church :

- (I) Certain lands situate on the west side of and adjoining the Company's railway extending from a point one hundred and seventy-six yards or thereabouts measured in a northerly direction from the said church to a point three hundred and fifty-three yards or thereabouts measured in a northerly direction from the said church being part of the enclosure numbered 295 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1901 of the said parish :

In the parish of Llanfabon in the urban district of Caerphilly—

- (K) Certain lands situate on the west side of and adjoining the Company's railway extending from the northern boundary fence of the reservoir adjoining Llanbradach Station to a point one hundred yards or thereabouts north of the said boundary fence being part of the enclosure numbered 1048 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1901 of the parish of Llanfabon :

- (L) Certain lands situate on the east side of and adjoining the Company's railway extending from the southern boundary of the enclosure numbered 1011 on the last-mentioned map and terminating at a point one hundred and thirty yards or thereabouts north of such boundary being part of the said enclosure :

- (M) Certain lands lying on the east side of and adjoining the Company's railway extending from a point one hundred and fifty-three yards or thereabouts south of the northern boundary of the enclosure numbered 945 on the last-mentioned map to a point forty yards or thereabouts north of the southern boundary of the enclosure numbered 919 on such map being parts of the said enclosures :

- (N) Certain lands lying on the east side of and adjoining the Company's railway extending from a point one hundred and twenty-six yards or thereabouts measured in a south-easterly direction from the northern boundary of the enclosure numbered 840 on the said map to a point ninety-eight yards or thereabouts south of the north-west corner of the enclosure

numbered 833 on the said map being parts of the A.D. 1911.
enclosures numbered 840 835 and 833 on the said
map :

- (o) Certain lands lying on the west side of and adjoining the Company's railway extending from a point eighty-three yards or thereabouts measured in a south-easterly direction from the Ty-isaf level-crossing to a point fifty-three yards or thereabouts measured in a north-westerly direction from the same level-crossing being parts of the enclosures numbered 850 and 834 on the last-mentioned map.

8. Where this Act authorises the diversion of a road or foot-
path or the making of a new road or footpath and the stopping
up of an existing road or footpath or portion thereof such stopping
up shall not take place until in the case of a new road the new
road is completed to the satisfaction of the road authority and is
open for public use or in case of difference between the Company
and the road authority until two justices shall have certified that
the new road has been completed to their satisfaction and is open
for public use and in the case of a public footpath until two
justices shall have certified that the new footpath has been
completed to their satisfaction and is open for public use.

Stopping up
roads and
footpaths in
case of
diversion.

Before applying to the justices for their certificate in the case of a new road the Company shall give to the road authority of the district in which the existing road is situate seven days' notice in writing of their intention to apply for the same.

As from the completion of the new road to the satisfaction of the road authority or as from the date of the said certificate as the case may be all rights of way over or along the existing road or portion or over or along the existing footpath or portion thereof shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation

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Provisions as to repair of roads and footpaths.

9. Any road or footpath or portion of road or footpath to be made diverted or altered under the authority of this Act (except the stone iron or other structure carrying any such road or footpath over the railway which structure shall unless otherwise agreed be maintained by and at the expense of the Company) shall when made and completed unless otherwise agreed be maintained by and at the expense of the body or persons liable to maintain roads or footpaths of the same nature and in the same parish and district as the road or footpath or portion of road or footpath in question.

As to private rights of way over lands acquired.

10. Subject to the provisions of this Act all private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

Power to deviate in construction of works.

11. In constructing the works by this Act authorised the Company may deviate from the lines of any of the said works shown on the deposited plans thereof to the extent of the limits of deviation marked on the deposited plans and may deviate vertically from the levels of the railways shown on the deposited sections thereof in accordance with the provisions of the Railways Clauses Consolidation Act 1845 and may deviate vertically from the levels of any other of the said works shown on the deposited sections thereof to any extent not exceeding five feet but not so as to increase the rate of inclination of any new or diverted road as shown on the said sections.

Period for compulsory purchase of lands.

12. The powers by this Act conferred upon the Company for the compulsory purchase of lands and buildings shall cease after the expiration of three years from the passing of this Act.

Persons under disability may grant easements &c.

13. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or

affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1911.

14. And whereas in the exercise of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if

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not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such

notice or such portion thereof as the tribunal shall A.D. 1911.
having regard to the circumstances of the case and
its final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845. The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

15. For the protection of the Cardiff Railway Company (hereinafter referred to as "the Cardiff Company") the following provisions shall have effect unless otherwise agreed between the Company and the Cardiff Company:— For protection of Cardiff Railway Company.

(A) No property of the Cardiff Company shall be taken or acquired by the Company under the powers of this Act:

(B) Railway No. 1 by this Act authorised and all works or alterations of existing works which it may be necessary to carry out in consequence of or in connection with the construction of that railway shall be so carried out as not to involve any increased expense or inconvenience in the user by the Cardiff Company of Tyndall Street Junction or the Bute Viaduct Junction or any other junction of the Cardiff Company near thereto and no alteration in any line of railway or junction as aforesaid shall be made otherwise than in accordance with plans and sections to be submitted to and reasonably approved by the engineer of the Cardiff Company before any such works are commenced or in the event of any dispute or difference between the Company and the Cardiff Company then in accordance with such plans and sections as may be approved by an arbitrator as hereinafter provided but so that unless the engineer of the Cardiff Company shall give notice of his disapproval of such plans or sections within fourteen days after they shall have been submitted to him he shall be deemed to have approved thereof:}

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- (c) The signal box on the east side of the Company's railway near to and north of Tyndall Street Junction shall not nor shall the signalling apparatus connected therewith be removed or interfered with by the Company until they shall at their own expense have constructed a new signal box with all necessary signalling apparatus in lieu thereof:
- (d) All running powers or rights of user which the Cardiff Company possess over or with respect to any part of the railways of the Company shall apply and be exerciseable with respect to any widening deviation or alteration of such parts of the said railways as may be carried out under the powers of this Act:
- (e) If any dispute shall arise between the Cardiff Company and the Company respecting the matters and provisions aforesaid or any of them such dispute shall be settled by arbitration in conformity with the Railway Companies Arbitration Act 1859.

For protec-
tion of Great
Western
Railway
Company.

16. For the protection of the Great Western Railway Company (in this section called "the Great Western Company") the following provisions shall unless otherwise agreed between the Company and the Great Western Company have effect (that is to say):—

- (1) The Company shall not enter upon or interfere with the railway of the Great Western Company or any of the lands or property of that company or execute any works by this Act authorised or referred to in this section between the points marked "x" and "y" on the plan signed in duplicate by Walter George Griffiths on behalf of the Company and William Wylie Grierson on behalf of the Great Western Company until the Company shall have delivered to the Great Western Company plans drawings and specifications of such intended works and those plans drawings and specifications shall have been approved in writing by the engineer of the Great Western Company or in the event of his failure for twenty-eight days after the delivery of the plans drawings and specifications until the same shall have been approved by an engineer to be appointed on the application of either party by the Board of Trade and all the intended works shall

be executed by the Company in all things according to such approved plans drawings and specifications and under the superintendence and to the reasonable satisfaction of the said engineer Provided always that if the Great Western Company so elect they may themselves carry out such intended works in accordance with the said plans drawings and specifications and the Company shall repay to them the reasonable expense thereof so far as the same is not to be borne by the Great Western Company in accordance with the provisions of this section: A.D. 1911.

- (2) The viaduct for carrying Railway No. 1 over the Great Western Railway between the points "x" and "y" on the signed plan and the abutments and piers thereof shall be constructed as shown on the said signed plan the headway under such viaduct being not less than fifteen feet Provided that if before the commencement of the construction of such viaduct the Great Western Company give notice to the Company not to construct the two piers shown on the said signed plan marked A and B respectively then the said viaduct shall be constructed with single spans between the points marked D and E and E and F respectively and the increased cost if any of so constructing the said viaduct shall be borne or paid to the Company by the Great Western Company:
- (3) If and when the Company intend to reconstruct the existing viaduct situated on the lands edged purple on the said signed plan they shall give reasonable notice thereof to the Great Western Company and if within twenty-eight days of the receipt of such notice the Great Western Company in writing request the Company to reconstruct the said existing viaduct with piers and spans similar to those which the Great Western Company may as in this section provided require in respect of the said viaduct for carrying Railway No. 1 over the Great Western Railway the Company shall so reconstruct the said existing viaduct and the increased cost occasioned thereby shall be borne or repaid to the Company by the Great Western Company If the Great Western

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Company shall at any time prior to the receipt of such notice require the Company to reconstruct the said existing viaduct in manner provided by this subsection the Company shall with all reasonable despatch carry out such reconstruction and the cost thereof and of all incidental works less such a sum as shall represent the difference in value to the Company of a new viaduct of similar spans to the spans of the existing viaduct instead of the then existing viaduct shall be borne or repaid to the Company by the Great Western Company :

- (4) The Company shall remove their existing embankment on the lands edged blue on the said signed plan and shall carry Railway No. 1 and their existing railway over those lands on viaduct and the terms of a certain agreement of the twenty-sixth March one thousand eight hundred and ninety-six made between the Company and the Great Western Company shall apply to the said lands and portion of viaduct Provided always that the total number of lines of railway which the Great Western Company may be required to construct at their own expense on the lands the subject of the said agreement and the said lands edged blue shall be limited to five and Article 4 of the said agreement is hereby cancelled but nothing herein shall prevent the Company from widening and maintaining the viaduct over the said lands to the full extent thereof at their own expense The Company shall repay to the Great Western Company the cost of such alterations to their goods shed machinery and appliances situate on or adjoining the lands respectively edged brown and red on the signed plan as may be necessary for the purpose of carrying out the works shown on the signed plan :

- (5) The Great Western Company shall be entitled to lay down maintain and use on the said lands edged blue such lines of rails and other works as they may from time to time think fit and the Company shall grant to the Great Western Company free of charge all necessary rights and easements for such purpose

Provided always that the granting of such rights and easements shall not be deemed to be in respect of or to deprive the Great Western Company of the right granted to them by section 10 of the Rhymney Railway Act 1885 to a second opening under their railway. Provided also that the Great Western Company shall not in constructing any such works prejudice the widening by the Company of their viaduct to the boundary of the said lands with piers and abutments in the same alignment as those shown on the said signed plan to carry the existing railway: A.D. 1911.

- (6) All expenses and costs connected with the removing of the embankment and the construction of the viaduct through and over the said lands edged yellow and blue on the said signed plan in excess of the cost which the Company would have been put to in carrying Railway No. 1 over the said lands edged blue on embankment instead of viaduct shall be borne or repaid to the Company by the Great Western Company:
- (7) The crossing of the railway and property edged brown and pink on the said signed plan shall be effected in such a manner as not to injure the stability of the railway and works of the Great Western Company. Should it be necessary in constructing any of the works in this section referred to to alter or remove any signals telegraph and telephone posts and wires on or connected with their said railways respectively or some of them at or near to the said crossing and works respectively the Company and the Great Western Company shall effect such alterations and the expenses of and connected with such alteration and removal and of restoring the same to their former state or placing them in a different position or of substituting other signals telegraph and telephone posts and wires therefor shall be borne by the Company or the Great Western Company according as the same are required to be removed in consequence of the works the cost of which is to be borne by the Company or the Great Western Company as the case may be:

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(8) The structure of the viaduct between the points "x" and "y" extended and widened as aforesaid shall be maintained by the Great Western Company to the reasonable satisfaction of the engineer of the Company and the Company shall repay to the Great Western Company on demand the annual cost incurred by them in maintaining the portion between the points marked "c" and "y" on the said plan except as provided by subsection 6 of section 16 of the Great Western Railway Act 1896:

(9) The Company shall bear and on demand pay to the Great Western Company the reasonable expense of the employment by them during the making of Railway No. 1 over and adjacent to the Great Western Railway of a sufficient number of inspectors signalmen or watchmen to be appointed for watching their railway and works and the conduct of the traffic thereon with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Company with reference thereto or otherwise and during the construction of the viaduct to carry the existing railway of the Company over the lands edged blue on the said signed plan the Great Western Company shall bear and pay to the Company the cost of any inspectors signalmen and watchmen for such purposes as aforesaid:

(10) Notwithstanding anything in this Act contained the Company shall from time to time be responsible for and make good to the Great Western Company all losses costs damages and expenses which may be occasioned to them or any of their works lands or property or to the traffic on their railway or to any company or persons using the same or otherwise during the execution or by reason of the failure of any of the intended works or of any act default or omission of the Company or of any persons in their employ or of their contractors or otherwise and the Company shall effectually indemnify and hold harm-

less the Great Western Company from all claims and demands upon or against them by reason of such execution or failure and of any such act default or omission : A.D. 1911.

- (11) In constructing Railway No. 1 the Company shall not in any way obstruct or interfere with the traffic passing along the Great Western Railway and if by reason of any works or proceedings of the Company there shall be any obstruction or interference with the said Great Western Railway so as to impede or prevent the convenient passage of engines and carriages along the same the Company shall pay to the Great Western Company such damage as the Great Western Company shall sustain :
- (12) In the event of the Great Western Company constructing the works on the lands edged blue the provisions of sections 9 and 10 of this section shall mutatis mutandis apply to that company :
- (13) Except for the purpose of the crossing of the respective railways of the Company and the Great Western Company neither company shall take or acquire any land of the other company or any right in or over the same and save as aforesaid nothing in this Act contained shall extend to authorise or enable either company to take or enter upon or use either temporarily or permanently any of the lands of the other company or to alter vary or interfere with the railway of such other company or with any of the works thereof further or otherwise than is necessary for the construction and maintenance of the works mentioned without the consent in writing in every instance for that purpose first had and obtained of the respective companies under common seal and with respect to any lands of the Great Western Company which the Company are by this Act from time to time authorised to purchase take use enter upon or interfere with for the purpose of such crossing or otherwise the Company shall not purchase or take any greater or other estate or interest in any such lands other than an easement or right of using the lands edged brown in perpetuity for the purposes for

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which but for this enactment the Company might purchase and take the same and such easement or right shall be granted to the Company by the Great Western Company free of cost:

- (14) If any dispute shall arise between the Great Western Company and the Company respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply and have reference thereto.

For protection of London and North Western Railway Company.

17. The following provisions for the protection of the London and North Western Railway Company (hereinafter referred to as "the North Western Company") shall unless otherwise agreed apply and have effect:—

- (1) The Company shall construct Railway No. 1 and the works in connection therewith by this Act authorised so far as the same pass over adjoin or affect the railway or works of the North Western Company situate on lands leased by them from the Company so as to leave undisturbed at all times the lines of railway and other works connected therewith of the North Western Company and so as in no way to obstruct impede or interfere with the free and uninterrupted and safe use of the said railway of the North Western Company or with the traffic thereon and if any such obstruction or interference shall be caused or take place the Company shall pay to the North Western Company full compensation in respect thereof:

- (2) The Company shall carry Railway No. 1 where the same is intended to cross over the railway of the North Western Company by means of a wrought iron or steel girder bridge with wrought iron or steel flooring of not less span than sixteen feet nor less clear headway throughout than fourteen feet three inches above the existing level of the upper surface of the rails upon the said railway of the North Western Company at the point of crossing:

(3) If by reason of the construction of the said portion of Railway No. 1 hereby authorised it shall become necessary to add to or to alter any signal or signals or other works upon the said railway of the North Western Company the same shall be so added to or altered by the North Western Company and the reasonable expense thereof shall be repaid to that company by the Company: A.D. 1911.

(4) The Company shall construct the said portion of Railway No. 1 where the same will pass over the railway of the North Western Company and all works both temporary and permanent necessary and incident to the construction thereof so far as they affect the railway property and works of the North Western Company in accordance with the provisions of this section and according to plans sections and specifications which shall be previously submitted to and approved in writing by the principal engineer of the North Western Company (hereinafter referred to as "the said principal engineer") and the Company shall not commence the construction of the said portion of Railway No. 1 or interfere with any works or property belonging to or used by the North Western Company until such plans sections and specifications have been so submitted and approved. Provided always that if the said principal engineer shall for the period of fourteen days neglect or refuse to approve such plans sections or specifications or shall disapprove the same and in case of the said principal engineer and the engineer of the Company failing to agree or of any difference arising between them then the said portion of Railway No. 1 and the said works shall be constructed according to plans sections and specifications to be submitted to and approved (subject however to the special provisions of this section) by an engineer to be agreed on or in default of agreement to be appointed at the request of either the Company or the North Western Company by the President of the Institution of Civil Engineers:

(5) The said portion of Railway No. 1 and all works necessary or incident to the construction thereof or

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affecting the property or works of the North Western Company shall be executed by and in all things at the expense of the Company and under the superintendence and to the reasonable satisfaction of the said principal engineer :

- (6) During the construction of the said portion of Railway No. 1 across and adjoining and near to or affecting the railway property and works of the North Western Company the Company shall bear and on demand pay to that company all expense of employment by them of a reasonable number of inspectors or watchmen to be appointed by that company for watching their railway and the works thereof with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Company or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise :
- (7) The Company shall at all times maintain the said portion of Railway No. 1 and all the works connected therewith and incident thereto by which the said Railway No. 1 shall be carried across and adjoining the railway of the North Western Company in substantial repair and good order to the reasonable satisfaction in all respects of the said principal engineer :
- (8) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the North Western Company all costs losses damages and expenses which may be occasioned to that company or to any of their railways works or property or to the traffic thereon or otherwise by reason of the execution or maintenance or by reason of the failure of the Company's railway and works in connection therewith or the maintenance thereof or any act or omission of the Company or of their contractors or of any of the persons in the employ of the Company or of their contractors and the Company will effectually indemnify and hold harmless the North Western Company from all claims and demands

upon or against them during or by reason of such execution or maintenance or failure or such act or omission: A.D. 1911.

- (9) If any difference shall arise between the respective engineers of the Company and the North Western Company as to the reasonableness of the plans sections and specifications hereinbefore provided for such difference shall be referred to and be determined by an engineer or other fit person to be mutually nominated by such respective engineers or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of the Company or the North Western Company.

18. For the protection of the Marquis of Bute his sequels in estate and assigns (all included in the expression "the Marquis" when hereinafter used) the following provisions shall have effect unless otherwise agreed between the Company and the Marquis:—

For protection of Marquis of Bute.

- (A) Notwithstanding anything in this Act contained the Company shall not acquire or use for the purposes of Railway No. 1 by this Act authorised or otherwise under the powers of this Act any land of the Marquis in the city of Cardiff other than that which they already hold of the Marquis under agreement for lease and shall not acquire the freehold of or any greater interest than they at present possess in such last-mentioned land:
- (B) The Company shall not interfere with the existing right of roadway of the Marquis in the lands numbered 20A on the deposited plans in the parish of Llanishen nor shall any provision of this Act as to extinguishment of private rights of way apply thereto nor shall the Company take any land between the southern boundary of the lands numbered 20 on the deposited plans in the same parish and a point five hundred and seventy feet north of such boundary except by agreement with the Marquis:
- (c) The existing accommodation bridge over the railway of the Company between the lands numbered 26 and 36 on the deposited plans in the parish of Llanishen

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and the existing occupation road through those lands shall be continued notwithstanding the acquisition of those lands or any part thereof by the Company and the said bridge shall be lengthened by and at the expense of the Company so as to carry such road in as convenient a manner as at present over any widening of the railway or other works which may be constructed by the Company on the said lands or any part thereof.

For protection of
Llandaff and
Dinas Powis
Rural District Council.

19. For the protection of the Llandaff and Dinas Powis Rural District Council (hereinafter referred to as "the council") the following provisions shall have effect unless otherwise agreed between the Company and the council:—

- (A) Notwithstanding anything in this Act contained the Company shall not divert the existing footpath and occupation road leading from Mill Road at or near Martle-wy House through the lands numbered 26 and 36 on the deposited plans in the parish of Llanishen and the Company shall at their own expense lengthen the existing bridge so as to carry the said footpath in as convenient a manner as at present over any widening of the railway or other works which may be constructed by the Company on the said lands or any part thereof and so as to connect the said footpath with the existing footpath on the western side of the railway:
- (B) The diverted footpath leading from Mill Road to Llwyn-crwn Farm authorised by the section of this Act of which the marginal note is "Power to make a footpath on lands of Company" shall not be fenced on the eastern side unless there is a width of at least five feet between the fences:
- (C) The Company shall not divert or in any way interfere with the existing footpath and sewer of the council situate on the lands numbered 20 and 20A on the deposited plans in the parish of Llanishen nor shall the Company in any way interfere with the access to such sewer:
- (D) The diversion of Cherry Orchard Road in the parishes of Llanishen and Lisvane authorised by the section

of this Act of which the marginal note is "Power to make new road on lands to be acquired" shall be carried out to the reasonable satisfaction of the council and in accordance with the plan and section signed by Walter George Griffiths on behalf of the Company and by James Holden on behalf of the council and the diverted portion of the said road shall be maintained by the Company to the reasonable satisfaction of the council for twelve months after the completion of the diversion:

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- (E) All new footpaths constructed by the Company shall be made up with six inches of ashes to the reasonable satisfaction of the council:
- (F) Any difference which may arise between the council and the Company under any of the provisions of this section or as to the mode of giving effect thereto shall be referred to the arbitration of and determined by an engineer or other fit person to be appointed (unless otherwise agreed) upon the application of either party by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

20. For the protection of the lord mayor aldermen and citizens of the city of Cardiff (in this section called "the corporation") the following provisions shall have effect except so far as the corporation and the Company may otherwise agree (that is to say):—

For protection of corporation of Cardiff.

- (1) In this section the words "street" and "sewer" have respectively the same meaning as in the Public Health Act 1875 the expression "water mains" includes water conduits water mains pipes hydrants valves and water apparatus and appliances belonging to the corporation and the expression "electric mains" includes electric mains cables wires pipes and electric apparatus and appliances belonging to the corporation:
- (2) The Company in carrying out the widening of the bridge which carries their Bute Docks Branch Railway over Tyndall Street shall construct and maintain the widened portion of such bridge in such a manner that there shall be throughout a clear span of fifty

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feet and a clear headway of not less than sixteen feet and the corporation shall contribute the sum of three hundred pounds towards the cost of such construction and when it shall become necessary to reconstruct or alter the existing bridge the Company shall reconstruct or alter the same in such a manner that there shall be a like span and headway under such existing bridge and the cost of the increased span and headway and works incidental thereto shall be borne and paid by the corporation:

- (3) The span of the widening of the said bridge shall be measured at right angles to the centre line of Tyndall Street and no portion of any pier fence or abutment shall project beyond the line of the street and the headway shall be measured from the surface of the roadway of the existing street where crossed to the lowest portion of underside of the bridge:
- (4) The widening of the said bridge shall be constructed and maintained in such a manner as to prevent as far as reasonably possible the dripping of water therefrom on any part of the roadway or footways thereunder and the undersurface of the superstructure shall be painted white and so maintained:
- (5) Except where expressly varied by or inconsistent with this section the provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall extend and apply to the water mains and to the corporation in respect thereof as though the corporation were a water company or society:
- (6) The Company shall not interfere with or disturb any sewer water main electric main or other works in connection therewith passing under Tyndall Street Bridge:
- (7) The Company shall be responsible for and make good to the corporation all costs losses damages and expenses which may be sustained by them by reason of any damage or injury which may be suffered by or occasioned to them or to any persons or property by reason of the execution or any defect or default in the execution (whether by the Company or their

contractors officers agents workmen or servants) of the powers of this Act and in particular by the breaking bursting or leaking of or escape from any sewer of the corporation passing under the Tyndall Street bridge caused by such execution defect or default as aforesaid and shall indemnify the corporation from all claims and demands upon or against them by reason of any such execution defect or default arising therefrom:

- (8) Nothing in this Act shall interfere with the rights or powers of the corporation in relation to the enlargement or improvement of the existing or the making of new sewers and drains or the laying of new water mains or electric mains:
- (9) If any electric main be rendered unnecessary by reason of the pulling down of the buildings supplied thereby or the stopping up of the street called The Walk the Company shall reimburse the corporation the cost of such electric main unless the same shall be utilised by the corporation for the supply to other persons:
- (10) The Company in carrying their Railway No. 1 over the western approach to the footbridge at the eastern end of Tyndall Street shall give a clear headway above the approach of not less than nine feet and shall not alter or interfere with the said footbridge or approaches in such a manner as to interfere with the user thereof by the public:
- (11) The Company and the corporation may enter into and carry into effect agreements for and with respect to the variation and mode of execution of any works to be done by the Company for the protection of the corporation and for the execution by the corporation of any such works and the acquisition of land therefor:
- (12) If any difference arise between the Company and the corporation touching anything to be done or not to be done or any moneys to be paid under the provisions of this section such difference shall be referred to arbitration and settled by an engineer appointed

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(unless otherwise agreed upon) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Power to
Company to
apply funds
to purposes
of Act.

21. The Company may appropriate and apply to all or any of the purposes of this Act being purposes to which capital is properly applicable any of the moneys which under and by virtue of any of their existing Acts they have raised or are authorised to raise and which may not be required for the purposes for which the same were authorised to be raised.

Period for
completion
of railways.

22. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Penalty im-
posed unless
railways are
opened
within time
limited.

23. If the Company fail within the period limited by this Act to complete the railways or any of them the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway in respect of which the penalty has been incurred is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the railway in respect of which the penalty has been incurred and the said penalty may be applied for by any land-owner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854. And every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided. But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the railway in respect of which the

penalty has been incurred by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control. A.D. 1911.

24. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the Company. Application of penalty.

25. The railways shall for the purposes of tolls rates and charges and all other purposes be deemed to be part of the railways of the Company. Tolls for use of railways.

26. The powers granted to the Company by the Act of 1902 for the compulsory purchase of lands for the purposes of Railway No. 4 and Railway No. 5 by that Act authorised as extended by the Act of 1905 and the Act of 1908 and the powers granted to the Company by the Act of 1908 for the compulsory purchase of easements and rights in or through the lands and works of the Barry Railway Company in the parish of Eglwysilan in the county of Glamorgan for the purpose of Further extension of time for taking lands under Act of 1902.

A.D. 1911. — making maintaining and using the said Railway No. 4 respectively are hereby extended and the same respectively may be exercised by the Company during a period of three years from the twenty-third day of June one thousand nine hundred and eleven and on the expiration of that period those powers shall cease.

Further extension of time for construction of railways authorised by Act of 1902.

27. The time limited by the Act of 1902 for the completion of Railway No. 4 and Railway No. 5 by that Act authorised as extended by the Act of 1905 and the Act of 1908 is hereby further extended for a period of five years from the twenty-third day of June one thousand nine hundred and fifteen and the Act of 1902 so far as it relates to those railways shall be read and construed as if the period by this Act limited for the completion of the said railways had been the period mentioned therein in that behalf. If the said railways be not completed within such extended period then on the expiration of that period the powers for making and completing the same and otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Extension of time for taking of lands under Act of 1908.

28. The powers granted to the Company by the Act of 1908 for the compulsory purchase of lands for the purposes of the railway by that Act authorised are hereby extended and the same may be exercised by the Company during a period of three years from the eighteenth day of June one thousand nine hundred and eleven and on the expiration of that period those powers shall cease.

Extending time for construction of railway authorised by Act of 1908.

29. The time limited by the Act of 1908 for the completion of the railway by that Act authorised is hereby extended for a period of three years from the eighteenth day of June one thousand nine hundred and eleven and the Act of 1908 shall be read and construed as if the period by this Act limited for the completion of the said railway had been the period mentioned therein in that behalf. If the said railway be not completed within such extended period then on the expiration of that period the powers for making and completing the same and otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Further extension of time for sale of certain superfluous lands.

30. The periods limited by the Act of 1908 for the sale of lands acquired by the Company which are situate near to or adjoining any railway or station of the Company or which they

may be of opinion they may require for the purposes of stations
sidings or other conveniences is hereby extended for a period of
ten years from the eighteenth day of June one thousand nine
hundred and eleven and as regards the others of the said lands
for the period of three years from that day.

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31. Nothing in this Act contained shall exempt the Company
or their railway from the provisions of any general Act relating
to railways or the better and more impartial audit of the accounts
of railway companies passed before or after the commencement
of this Act or from any future revision or alteration under the
authority of Parliament of the maximum rates of fares and
charges or of the rates for small parcels authorised to be taken
by the Company.

Provision as
to general
Railway
Acts.

32. All costs charges and expenses of and incident to the
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company.

Costs of Act.

The SCHEDULE referred to in the foregoing Act.

DESCRIBING THE PROPERTIES OF WHICH PARTS ONLY MAY BE
TAKEN BY THE COMPANY.

Name of Parish.	Numbers on deposited Plans.
Cardiff - - - - -	1 2.
Llanishen - - - - -	8 12 18 24 32 33 34.
Llanfabon - - - - -	4 7 17 21A 22 24.

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